

UNITED STATES FANTASY FOOTBALL COURT OF APPEALS

MARC GOLDICH,
Appellant,

v.

GOD EMPEROR COMMISSIONER DYLUS,
Appellee.

Civil Action No. 26-FF-0831

EMERGENCY MOTION TO COMPEL JUDICIAL REVIEW AND TO VACATE IMPROPER REFERRAL TO THE CLERK

Appellant respectfully moves to compel judicial review of his pending appeal and to vacate the Commissioner's purported referral of the matter to the Office of the Clerk [trash bin].

In response to Appellant's timely Notice of Appeal, the Commissioner stated: "**Not reading this essay. Please direct it to the proper clerk.**" [trash bin]

The Court appreciates the Commissioner's newfound commitment to proper filing procedure. Nevertheless, a Commissioner cannot render an appeal nonexistent merely by declining to read it. *See Schrodinger v. Dylus*, 3 F.F. 1 (2026) ("The appeal remains pending whether or not the Commissioner opens the PDF.").

Nor does the record establish that Clerk [trash bin] possesses jurisdiction over this dispute. To the contrary, the Clerk appears to have been selected precisely because it has never reversed the Commissioner. Appellant therefore respectfully objects to application of the **Phantom Clerk Doctrine**.

Accordingly, Appellant requests an Order:

1. **VACATING** the purported referral to Clerk [trash bin];
2. **COMPELLING** the Commissioner to read the fucking appeal and adjudicate it on the merits; or
3. **IN THE ALTERNATIVE**, deeming the Commissioner's refusal to exercise appellate jurisdiction a recusal and referring the appeal to the League sitting **en banc**.

Should the Commissioner decline all three forms of relief, Appellant respectfully submits that the only remaining issue is whether the 10:00 p.m. draft time becomes effective **by default or by contempt**.

Respectfully submitted,

/s/ Marc Goldich
Marc Goldich
Appellant, Pro Se
Still Litigating